

Gudiya Devi v. State of U.P. & Others

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 1 July 2022 · WRIT - C No. 4123 of 2022 · **Writ dismissed as an abuse of process; the order of 27.06.2022 stayed recovery of the disputed bill and did not restrain disconnection**

HEADNOTE

Where a consumer already has an order directing her to apply under paragraph 6.5(b) of the Electricity Supply Code, 2005, and staying recovery of a disputed bill, a fresh writ alleging that removal of the meter the same evening violated that order fails if the order never restrained disconnection. On 27 June 2022, in Writ-C No. 3991 of 2022, the Lucknow Bench had directed Gudiya Devi to approach the competent authority under paragraph 6.5(b) within two weeks, the authority to consider the application within three further weeks, and had stayed recovery on the bill dated 13 June 2022 of Rs 1,26,731 for six weeks or until that decision. The order did not direct that the supply line not be disconnected. Writ-C No. 4123 of 2022, pressed as an urgent breach of that order, and supported by a verification of the disconnection on the husband's personal knowledge though only the daughter was present, was dismissed as an abuse of process. The correctness of the bill was not reopened.

FACTUAL SUMMARY

Gudiya Devi's Writ-C No. 3991 of 2022 was disposed of by the Lucknow Bench on 27 June 2022. The Court directed her to apply within two weeks under paragraph 6.5(b) of the Electricity Supply Code, 2005, the authority to consider the application within three further weeks, and stayed recovery on a disputed bill dated 13 June 2022 of Rs 1,26,731 for six weeks or until that decision. She alleged that after the order was uploaded around 5:30 p.m., electricity-department employees removed the meter and disconnected the wires at 6:30 p.m. and abused the Court, though only her daughter Nidhi was present.

Her husband swore this Writ-C No. 4123 of 2022, verifying that account on personal knowledge. Counsel mentioned it urgently on 1 July 2022. At 1:00 p.m., counsel for the department said the meter had been reinstalled once the interim order was conveyed, and that the petitioner's counsel had been told so that morning and had assured that no urgency would be mentioned. He still insisted that a permanent disconnection had breached the 27 June order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

A direction to apply under paragraph 6.5(b), with a stay of recovery of the disputed bill, does not restrain disconnection unless the order says so

QUESTION

Does an order directing the consumer to apply under paragraph 6.5(b) and staying recovery of the disputed bill also restrain the licensee from disconnecting supply?

HOLDING

No. The order of 27.06.2022 in Writ-C No. 3991 of 2022 directed the petitioner to approach the competent authority by an application under paragraph 6.5(b) of the Electricity Supply Code, 2005 within two weeks, and that authority to consider it within three further weeks. Recovery pursuant to the disputed bill dated 13.06.2022 was stayed for six weeks or until that decision. The order contained no direction that the electricity line to the petitioner's house should not be disconnected; only recovery in respect of the disputed bill of Rs 1,26,731 was stayed. A fresh writ insisting that permanent disconnection violated that order was dismissed as an abuse of process. ¶ 7-8

QUALIFIER

Counsel for the department stated that the meter had been reinstalled after the interim order was conveyed, and that the petitioner's counsel had assured her clerk he would not mention urgency. On the verification, counsel conceded that paragraph 4 should have been sworn as derived knowledge, not personal knowledge,

because the deponent was not present. The Court made no finding of contempt and did not decide whether the meter was in fact removed.

FLAG Unnumbered order of 1.7.2022, Court No. 5, Lucknow Bench. Paras 1-8 are sequential blocks of the extract: (1) morning mention of Writ-C No. 3991 of 2022 and the alleged disconnection; (2) notice and the 1:00 p.m. listing; (3) counsel's statement that the meter was reinstalled and that urgency would not be mentioned; (4) the offices' assurance and denial that employees abused the Court; (5) quoted paragraph 4 of the writ and the husband's verification; (6) questioning of that verification and counsel's concession of inadvertence; (7) the insistence on breach, and the recital of the 27.06.2022 order; (8) no direction against disconnection, and dismissal as abuse of process. The judgment cites paragraph 6.5(b) only, not clause 6.5(b)(ii). The text hit 'Gudiya Devi vs. State' is the petitioner's own earlier writ, not an external precedent. Digitally signed 4.7.2022; the order date is 1.7.2022.

PRINCIPLE TAGS

recovery-stay-pending-6.5b-application-does-not-restrain-disconnection An order that sends the consumer to the competent authority under paragraph 6.5(b) and stays recovery of the disputed bill does not, without express words, restrain disconnection. A fresh writ treating same-day removal of the meter as disobedience of that stay was dismissed as an abuse of process. The bill itself was not reopened. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE DISPUTED BILL DATED 13.06.2022 OF RS 1,26,731
Left with the competent authority under the 27.06.2022 direction to apply under paragraph 6.5(b). This writ did not reopen the bill. ¶ 7-8

NOT DECIDED — WHETHER EMPLOYEES REMOVED THE METER AT 6:30 P.M. ON 27.06.2022, LATER REINSTALLED IT, OR ABUSED THE COURT

The writ alleged removal, abuse, and disobedience. Counsel for the department said the meter had been reinstalled and denied any abuse of the Court. The Court recorded those statements and dismissed the petition because the earlier order did not restrain disconnection. It made no finding on the physical facts. ¶ 1-6, 8

NOT DECIDED — WHETHER PARAGRAPH 6.5(B) ITSELF AUTHORISES OR FORBIDS DISCONNECTION WHILE AN APPLICATION UNDER IT IS PENDING

The Court construed only the words of its order dated 27.06.2022. It did not open the text of paragraph 6.5(b), and it did not cite clause 6.5(b)(ii). ¶ 7-8